

House File 178

H-1015

1 Amend House File 178 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 321.285, subsections 3 and 4, Code 2025,
4 are amended to read as follows:

5 3. Unless otherwise provided in this section or by other
6 speed restrictions, the speed limit for all vehicular traffic
7 shall be ~~fifty-five~~ sixty miles per hour.

8 4. A reasonable and proper speed is required, but not
9 greater than ~~fifty-five~~ sixty miles per hour at any time
10 between sunrise and sunset, and not greater than fifty miles
11 per hour at any time between sunset and sunrise, on secondary
12 roads unless such roads are surfaced with concrete or asphalt
13 or a combination of both, in which case the speed limits shall
14 be the same as provided in subsection 3. When the board of
15 supervisors of any county shall determine upon the basis of an
16 engineering and traffic investigation that the speed limit on
17 any secondary road is greater than is reasonable and proper
18 under the conditions found to exist at any intersection or
19 other place or upon any part of a secondary road, the board
20 shall determine and declare a reasonable and proper speed
21 limit at the intersection or other part of the secondary road.
22 The speed limits as determined by the board of supervisors
23 shall be effective when appropriate signs giving notice of the
24 speed limits are erected by the board of supervisors at the
25 intersection or other place or part of the highway.

26 Sec. _____. Section 321.285, subsection 5, paragraph a, Code
27 2025, is amended to read as follows:

28 a. Notwithstanding any other speed restrictions, the speed
29 limit for all vehicular traffic on fully controlled-access,
30 divided, multilaned highways is ~~sixty-five~~ seventy miles per
31 hour. However, the speed limit for all vehicular traffic
32 on highways that are part of the interstate road system, ~~as~~
33 ~~defined in section 306.3~~, is ~~seventy~~ seventy-five miles per
34 hour. The department may establish a speed limit of ~~sixty-five~~
35 seventy miles per hour on certain divided, multilaned highways

1 not otherwise described in this paragraph.

2 Sec. _____. Section 321.293, Code 2025, is amended to read as
3 follows:

4 **321.293 Local authorities may alter limits.**

5 Local authorities in their respective jurisdiction may in
6 their discretion subject to the approval of the department
7 authorize by ordinance higher speeds than those stated in
8 section 321.285 upon through highways or upon highways or
9 portions thereof where stop or yield signs have been erected
10 at the entrances thereto provided signs are erected giving
11 notice of the authorized speed, but local authorities shall
12 not have authority to authorize by ordinance a speed in excess
13 of ~~fifty-five~~ sixty miles per hour. If local authorities fail
14 to authorize by ordinance higher speeds than those stated
15 in [section 321.285](#) upon through highways or upon highways
16 or portions thereof where stop signs have been erected at
17 the entrances thereto, the department may recommend, upon
18 the basis of an engineering and traffic investigation, to
19 the local authorities that the speed limit be increased. If
20 local authorities fail to increase the speed limit upon said
21 recommendation of the department, said department shall declare
22 a reasonable and safe speed limit which shall be effective when
23 appropriate signs are erected giving notice thereof.>

24 2. Title page, lines 1 and 2, by striking <the penalty for
25 speeding in excess of twenty miles per hour over the limit>
26 and inserting <speed limits, providing penalties, and making
27 penalties applicable>

28 3. By renumbering as necessary.

THOMSON of Floyd